



CHAPTER lxxxiii.

An Act to confirm a Provisional Order of the Local Government Board relating to Wolverhampton. A.D. 1903.

[21st July 1903.]

WHEREAS the Local Government Board have made the Provisional Order set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Order should be confirmed by Parliament and that the provisions herein contained should be enacted with reference thereto :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as altered and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall subject to the provisions of this Act have full validity and force. Order in
schedule
confirmed.

2. The Mayor Aldermen and Burgesses of the Borough of Wolverhampton shall not under the powers of the Order hereby confirmed purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction
of power to
take houses
of labouring
class.

The expression “labouring class” means mechanics artizans labourers and others working for wages hawkers costermongers

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A.D. 1903. persons not working for wages but working at some trade or
— handicraft without employing others except members of their own
family and persons other than domestic servants whose income
does not exceed an average of thirty shillings a week and the
families of any of such persons who may be residing with them.

Short title. **3.** This Act may be cited as the Local Government Board's
Provisional Order Confirmation (No. 18) Act 1903.

S C H E D U L E.

A.D. 1903.

BOROUGH OF WOLVERHAMPTON.

*Provisional Order for altering the Wolverhampton Improvement
Act 1869 and certain Confirming Acts.*

Wolverhampton Order.

To the Mayor Aldermen and Burgesses of the Borough of
Wolverhampton ;—

And to all others whom it may concern.

WHEREAS the Borough of Wolverhampton (herein-after referred to as
“ the Borough ”) is an Urban Sanitary District of which the Mayor Aldermen
and Burgesses acting by the council (herein-after referred to as “ the Cor-
poration ”) are the Urban Sanitary Authority and the unrepealed provisions
of the Wolverhampton Improvement Act 1869 (herein-after referred to as 32 & 33 Vict.
“ the Local Act ”) as altered by a Provisional Order of the Local Government c. cxxxi.
Board dated the Seventh day of June One thousand eight hundred and
eighty-eight which was confirmed by the Local Government Board's 51 & 52 Vict.
Provisional Order Confirmation (No. 13) Act 1888 by the Wolverhampton c. clxvii.
Order 1896 (No. 2) which was confirmed by the Local Government Board's
Provisional Order Confirmation (No. 21) Act 1896 (which Provisional Orders 59 & 60 Vict.
and Confirming Acts are herein-after together referred to as “ the Orders ” c. clxx.
and “ the Confirming Acts ” and each of which Provisional Orders is herein-
after referred to as the Order of the year in which it was made) and
certain other Local Acts and Provisional Orders duly confirmed by Parliament
but which do not affect the subject-matter of this Order are in force in the
Borough ;

And whereas by Section 136 of the Local Act it is enacted that the
Corporation shall continue and maintain and may alter and improve their
existing waterworks and subject to the provisions of that Act may from time
to time make and maintain on lands belonging to them or authorised to be
used by them for the purposes of waterworks all necessary pipe tracks sluices
embankments channels of communication byewashes filtering beds tanks
culverts engines drains floodgates and other conveniences for the effectual use
and maintenance of the works by the Local Act authorised to be continued
and maintained ;

And whereas by the Local Act and the Order of 1896 the Corporation were
empowered to borrow money for the purposes of their water undertaking ;

And whereas the waterworks belonging to the Corporation include a
certain pumping station known as the Cosford Pumping Station and the
Corporation propose to construct an aerial ropeway for the purpose of

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A.D. 1903. conveying coal and other materials and goods required for use at the said
Wolverhampton Order. pumping station from a siding to be constructed by the Great Western
Railway Company at the expense of the Corporation on Plot 1 of the
scheduled lands to such pumping station and for such purpose to acquire
certain additional lands ;

And whereas the said pumping station adjoins an estate known as the
Hatton Grange Estate and the Agreement (herein-after referred to as "the
Agreement") set forth in the Schedule annexed to this Order and made
between the Corporation and William Slaney Kenyon-Slaney the tenant for
life of the said Hatton Grange Estate and the Trustees of the settlement of
that estate provides for the sale to and the purchase by the Corporation of
the two pieces of land (herein-after referred to as "the scheduled lands")
specified in the schedule to the Agreement and delineated in the plan
annexed thereto one of which adjoins the said pumping station and is
situate in the Parish of Shifnal in the County of Salop and the other of
which adjoins the Great Western Railway and is situate in the Parish of
Tong in the said County together with the right of constructing maintaining
and using an aerial ropeway on and between the scheduled lands and certain
other rights and privileges more particularly set forth in the Agreement
and also includes in the sum to be paid in pursuance of the Agreement
compensation for damage or loss alleged to have been occasioned to the
said estate ;

And whereas a copy of the Agreement and of the plan annexed thereto
has been deposited in the office of the Local Government Board ;

And whereas by Article XIII. of the Order of 1888 provision was
made for the setting apart and accumulation of a reserve fund to the amount
of ten thousand pounds for the purpose of meeting extraordinary claims or
demands or of defraying the cost of improvements in connexion with the
water undertaking of the Corporation ;

And whereas the Corporation propose to construct additional reservoirs
for the purposes of their water undertaking to build or acquire dwelling-houses
for their workmen employed in connexion therewith and to borrow money for
those purposes and also for the payment of certain sums by the Corporation
in pursuance of the Agreement :

38 & 39 Vict. c. 55. Now therefore We the Local Government Board in the exercise of the
powers given to Us by Sections 297 and 303 of the Public Health Act 1875
do hereby order that from and after the date of the Act of Parliament
confirming this Order (herein-after referred to as "the commencement of this
Order) the Local Act and the Confirming Acts so far as they respectively
relate to the Orders shall be altered so that the following provisions shall
have effect that is to say,—

Power to purchase lands for purposes of the water undertaking and to construct an aerial ropeway. Art. I.—(1) The Corporation may for the purposes of their water
undertaking and of this Order and subject to the terms and conditions of the
Agreement purchase the scheduled lands.

(2) The Corporation may construct maintain and use on and between
the scheduled lands an aerial ropeway for the conveyance of coal and other

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materials and goods and all necessary sidings junctions works engines buildings machinery pillars posts lines wires or other appliances in connexion with the said ropeway and subject to the provisions of subdivision (3) of this Article may execute or construct any other works necessary to carry into effect the terms and conditions of the Agreement. A.D. 1903.

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(3) The Agreement shall apply and have effect as from the commencement of this Order and otherwise with such modifications if any as may be needed to bring the terms and conditions of the Agreement into conformity with this Order and with the provisions and conditions in pursuance of and subject to which the Corporation may exercise or discharge any powers or duties vested in exerciseable by or attaching to the Corporation under this Order or otherwise for any purposes of the Agreement or of this Order and subject as aforesaid the Agreement is hereby confirmed and made binding upon the parties thereto. Confirmation of
agreement.

Art. II.—(1) The Corporation may for the purposes of their water undertaking construct in accordance with plans to be approved by the Local Government Board and maintain two additional service reservoirs in the Parishes of Tettenhall and Sedgley adjoining existing service reservoirs of the Corporation and on land belonging to them. Additional
service
reservoirs.

(2) Section 53 of the Public Health Act 1875 shall apply and have effect in relation to any work in pursuance of subdivision (1) of this Article as if the said section were herein re-enacted and in terms made applicable to the Corporation and to the said work.

Art. III.—(1) The Corporation may (by agreement but not otherwise) purchase take on lease acquire and hold such land not exceeding ten acres as they may require for the purposes of their water undertaking in addition to the scheduled lands : Purchase of
additional
lands for water
undertaking.

Provided that the Corporation shall not sink or construct or cause or permit to be sunk or constructed a well or bore-hole on any lands acquired in pursuance of this Article or create or permit the creation or continuance of any nuisance on any lands so acquired.

(2) The Corporation may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they think fit any lands acquired by them in pursuance of subdivision (1) of this Article and not required for the purposes of their water undertaking and may make do and execute any deed act or thing proper for effecting any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange. Disposal of
surplus lands.

(3) Any money arising from the sale lease exchange or disposal of any such lands shall be applied towards repaying any money borrowed by the Corporation for the purchase of such lands Provided that the same shall not be applied to the payment of instalments or to payments into any sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

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A.D. 1903. (4) Any money arising as aforesaid and not required for the repayment of moneys borrowed by the Corporation for the purchase of such lands shall be applied to any purpose of their water undertaking to which capital moneys are properly applicable and which may be approved by the Local Government Board.

Dwellings for workmen employed by the Corporation.

Art. IV. The Corporation may purchase or take on lease dwelling-houses for persons employed by them for the purposes of their water undertaking and may erect and maintain dwelling-houses for those persons upon any lands for the time being belonging to the Corporation for the purposes of the said undertaking and (subject to the covenants and conditions of any lease) upon any lands for the time being leased to the Corporation for the purposes of the said undertaking.

Increase of reserve fund for purposes of water undertaking.

Art. V. Notwithstanding anything contained in Article XIII. of the Order of 1888 the maximum reserve fund of the Corporation for the purposes of their water undertaking shall be a sum equal to one-twentieth of the aggregate capital expenditure for the time being of the Corporation upon their water undertaking and the said Article XIII. shall have effect as if the said sum were substituted therein for the sum of ten thousand pounds.

Penalties for injuring pipes meters and instruments and for fraudulently altering meters.

Art. VI.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied the Corporation may enter upon the premises occupied by the offender and repair such injury and do all such works or things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rents are recoverable.

Power to lay pipes in streets not dedicated to public use.

Art. VII. Section 177 of the Local Act shall apply and have effect as if for the words "the owners and occupiers thereof" there were substituted the words "or an application from a majority of the owners or of the occupiers of the said lands or of any premises abutting on the said lands."

Borrowing powers for purposes of Order.

Art. VIII. In addition to the sums already authorised to be borrowed for the purposes of their water undertaking the Corporation may with the sanction of the Local Government Board and subject to the provisions of this

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Order borrow on the security of the revenue arising from their water under-
taking and of the improvement fund and improvement rate of the Borough or
upon either of those securities such sums as may from time to time be necessary
for the purposes of this Order including the payment of any principal or
capital sums under the terms and conditions of the Agreement. A.D. 1903.
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Art. IX. The moneys borrowed by virtue of this Order shall be repaid Period for re-
payment of
borrowed
moneys.
within such period from the date of borrowing as the Corporation with the
sanction of the Local Government Board in each case determine and the
period so determined and sanctioned shall with reference to the moneys to be
repaid be the prescribed period for the purposes of the Local Loans Act 1875
and of Articles VII. VIII. and IX. of the Order of 1896 as applied by this
Order.

Art. X. Article V. and Articles VII. to XIII. of the Order of 1896 shall Repayment &c.
of borrowed
moneys and
costs of local
inquiries.
apply as if those Articles were herein re-enacted and in terms made applicable
to the moneys borrowed under this Order and otherwise to the purposes of
this Order.

Art. XI. This Order may be cited as the Wolverhampton Order 1903. Short title.

The SCHEDULE.

MEMORANDUM OF AGREEMENT made this Fourteenth day of February One
thousand nine hundred and three between WILLIAM SLANEY KENYON-
SLANEY of Hatton Grange Shifnal in the County of Salop retired Colonel
of His Majesty's Grenadier Guards M.P. of the first part ROBERT LLOYD
KENYON of the Pradoc in the said County of Salop Esquire and FRANCIS
GERALD KENYON-SLANEY of Denwick in the County of Northumberland
a Lieutenant-Colonel retired of the Durham Light Infantry of the second
part and the MAYOR ALDERMEN and BURGESSES of the County Borough
of WOLVERHAMPTON acting by the Council (herein-after called the
Corporation) of the third part.

WHEREAS the said William Slaney Kenyon-Slaney is the present tenant for life of
the Settled Estate known as Hatton Grange (herein-after referred to as the Hatton
Grange Estate) and the said Robert Lloyd Kenyon and Francis Gerald Kenyon-
Slaney (herein-after called the Trustees) are the Trustees of the Settlement thereof;

And whereas the Corporation are the owners of a piece of land adjoining the
Hatton Grange Estate and in pursuance of certain statutory enactments have used the
same for the purpose of their water undertaking by the erection thereon of a pumping
station known as the Cosford Pumping Station and by the sinking of wells therein
and the abstraction of water therefrom and from a stream bounding the same and
known as the River Worfe otherwise the Cosford Brook;

And whereas by such user of the said piece of land by the Corporation it is
alleged that the Hatton Grange Estate has been deprived of a large part of its surface
and underground water and has been much damaged and the capital value thereof has

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A.D. 1903. been much reduced and diminished rents for the lands adjoining the said pumping station have been received and great expense has been incurred in providing a water supply for certain portions of the Hatton Grange Estate ;

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And whereas the Corporation for purposes subsidiary to their said water undertaking are desirous of obtaining possession of the two pieces of land herein-after described in the Schedule hereto and also delineated on the plan hereto annexed and thereon coloured pink being part of the Hatton Grange Estate and of acquiring the easements rights and privileges herein-after more particularly set forth ;

And whereas the Corporation have also agreed to pay the Trustees compensation for the alleged damage and loss caused as aforesaid to the Hatton Grange Estate in the manner herein-after appearing :

Now these presents witness and it is hereby agreed between the parties hereto as follows:—

1. The said William Slaney Kenyon-Slaney agrees as such tenant for life as aforesaid to sell and the Corporation agree to purchase subject to the reservations conditions and provisos herein-after mentioned (1) the two pieces or parcels of land specified in the Schedule hereto and delineated on the plan hereunto annexed and thereon coloured pink (2) full and free liberty and license for the Corporation to enter in and upon and construct and for ever maintain over those portions of the Hatton Grange Estate lying between the two said pieces or parcels of land herein-before agreed to be sold an aerial ropeway (herein-after called the said ropeway) along the line shown on the said plan and thereon marked "line of intended aerial ropeway" and for that purpose to cut down all necessary timber along the said line and fix and for ever maintain all necessary pillars posts lines wires or other appliances and from time to time to use the said ropeway for the carriage thereon of coal and other materials and goods to and fro between the two said pieces of land such ropeway to be constructed in accordance with the plan submitted to the said William Slaney Kenyon-Slaney and approved by him (3) a right of footway between the said two pieces of land along the said line.

2. The Corporation shall pay for the purchase of the said two pieces of land and for the acquisition of the said easements rights and privileges and as compensation for all past alleged ascertained damage or loss caused to the Hatton Grange Estate inclusive of the costs incurred by the Trustees in providing a water supply as aforesaid the sum of ten thousand pounds.

3. The conveyance to the Corporation shall contain the following reservations to the said William Slaney Kenyon-Slaney and to the Trustees or other the owner or owners for the time being of the Hatton Grange Estate (1) All the mines and minerals lying under the two said pieces or parcels of land and all mines and minerals and all quarries of lime or stone in or under the lands over which the said ropeway may be erected together with all necessary powers for working getting and carrying the same away so long as any mining operations shall not affect the stability of or injure in any way the said ropeway (2) All sub-surface rights in or under the same lands (3) All shooting or sporting rights over the same lands and all rights of fishing in the said Cosford Brook (4) A right of way between the points "A" "B" and "C" on the plan (5) A cartway between points "D" and "E" on the plan Provided that the Corporation shall have full right and liberty to lay any pipes beneath the ground upon which the said ropeway is constructed to a depth of not less than two feet under the surface so as to connect the said two pieces or parcels of land herein-before referred to and hereby contracted to be sold for the purpose of supplying the cottages to be built as herein-after mentioned on the said pieces or parcels of land

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if necessary with water the Corporation making good any damage that may be done to the surface of the land or otherwise and the said pipes to remain at their sole risk.

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—
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4. The title shall commence as to part with the Will dated the Thirtieth day of December One thousand eight hundred and fifty-seven of Robert Aglionby Slaney who died on the Nineteenth day of May One thousand eight hundred and sixty-two whose seisin shall be admitted and as to other part with an Indenture of Exchange dated the Thirtieth day of June One thousand eight hundred and ninety-eight and made between the said William Slaney Kenyon-Slaney of the one part and the said Robert Lloyd Kenyon and Francis Gerald Kenyon-Slaney of the other part An abstract of the title to the said premises shall be delivered to the Corporation or their solicitor within seven days from the confirmation of this Contract by Parliament or from the time when Parliamentary sanction shall be obtained to give effect thereto and all objections and requisitions to or upon such title shall be delivered within fourteen days after the delivery of such abstract.

5. The hereditaments agreed to be sold are together with other hereditaments of much greater value now subject to a mortgage for ten thousand pounds created by an Indenture dated the Twenty-fifth day of March One thousand eight hundred and forty-five and made between the said Robert Aglionby Slaney of the first part William Henry Slaney of the second part Mary Slaney of the third part and Thomas Campbell Eyton and the said William Henry Slaney John Ralph Ormsby Gore and Sir Robert Williames Vaughan of the fourth part.

6. The purchase shall (subject to Parliamentary powers being obtained by the Corporation in that behalf) be completed within three months from the date of the Act confirming the Provisional Order conferring such powers or subject as aforesaid not later than the Twenty-ninth day of September One thousand nine hundred and three whichever shall first happen at the offices of Messrs. Peele and Peele the solicitors of the said William Slaney Kenyon-Slaney in Dogpole Shrewsbury and if from any cause whatever the purchase shall not be completed on that day the Corporation shall thenceforth pay interest to the Trustees on the said sum of ten thousand pounds after the rate of four pounds per centum per annum but notwithstanding any such payment of interest the said William Slaney Kenyon-Slaney shall be entitled to retain possession of all the said hereditaments and to receive for his own use the rents and profits thereof until the Corporation shall have paid to the Trustees the said sum of ten thousand pounds and all interest for the same.

7. All the common form conditions of the Shropshire Law Society so far as they are applicable to a sale by private treaty shall be deemed to be incorporated in this Agreement and shall apply to the Agreement for sale herein contained except in so far as they are varied or contradicted by the special conditions herein-before set forth.

8. Upon the payment of the purchase money at the time and place aforesaid all necessary parties shall execute to the Corporation a proper assurance of the said premises and a counterpart of such assurance duly executed by the Corporation shall be handed to the Trustees The said Robert Lloyd Kenyon and Francis Gerald Kenyon-Slaney shall also give to the Corporation an acknowledgment of the right of the Corporation to production of all such documents of title as may not be delivered up to them.

9. The Conveyance to the Corporation and the counterpart thereof shall subject to such Parliamentary powers being obtained as aforesaid contain covenants by the Corporation so as to bind the Corporation their successors and assigns and to run with

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A.D. 1903. the lands hereby agreed to be sold with the said William Slaney Kenyon-Slaney his heirs and assigns to the following effect :—

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- (A) Not to cut down any unnecessary timber in the construction of the said ropeway and to pay a fair and reasonable price for all timber actually so cut down or at the option of the Corporation to deliver the same to the timber yard of the said William Slaney Kenyon-Slaney free of charge :
- (B) Not to sink any wells or save in manner herein-after appearing construct any works for the collecting or storing of water upon the said pieces of land hereby agreed to be sold :
- (C) Not to use the said piece of land first described in the Schedule hereto except for the purpose of making thereon a siding connected with the line of the Great Western Railway Company and all necessary buildings in connexion with such siding and collecting coal and other materials brought to such siding by such railway and for the storing thereon of such coal and other materials required for the said pumping station and for the erecting of such necessary works in connexion with the said ropeway and for the purpose of conveying such coal and other materials along the same and except for the erection thereon of a cottage outbuildings and premises for the occupation of a workman employed by the Corporation and his family :
- (D) Not to use the said piece of land secondly described in the Schedule hereto except for the purpose of erecting necessary works in connexion with the said ropeway and receiving thereon and sending therefrom along the said ropeway coal and other materials required for the said pumping station and for storing thereon such coal and other materials and for the erection thereon of not more than six cottages for the occupation of workmen actually employed by the Corporation at the said pumping station and of their families and except for the erection and construction of filters filter beds and filter houses to be used in connexion with the existing waterworks of the Corporation :
- (E) If any such cottages shall be erected on the said lands by the Corporation not to permit or suffer the said Cosford Brook to be polluted in any way by any solid or liquid sewage slops or refuse arising from the said cottages or any of them or from any outhouses buildings grounds yards or gardens occupied therewith Provided that the Corporation shall be held harmless if they use or cause to be used the best known means of rendering innocuous the said sewage slops or refuse prior to its discharge into the said brook the question whether the best known means are being used or not in case of dispute to be settled by arbitration under the arbitration clause herein-after contained :
- (F) If any such cottages shall be erected as aforesaid to erect the same only in accordance with plans to be previously submitted to the said William Slaney Kenyon-Slaney or other the owner for the time being of the Hatton Grange Estate :
- (G) Before commencing the construction of the said ropeway siding or cottages or any works in connexion therewith respectively to well and securely fence off and for ever after to keep so fenced off with a suitable iron fence five feet high at the least the two said pieces of land from the adjoining portions of the Hatton Grange Estate the said fence not to be spiked or pointed so as to be dangerous to hands :
- (H) To construct with proper materials and in a workmanlike manner a road fit for carts wagons and carriages between the points marked "D" and "E" on

the plan and to erect at each of the points marked "gate" on the said plan a suitable iron gate : A.D. 1903.

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- (i) Where the said ropeway passes through any plantation upon the Hatton Grange Estate to well and securely fence off and for ever after to keep so fenced off such ropeway from such plantation with a suitable iron fence five feet high at the least such fence to have in it suitable iron gates not exceeding two in number at points to be selected by the said William Slaney Kenyon-Slaney allowing convenient communication across the line of such ropeway between the severed portions of such plantation to the owner or owners for the time being of the Hatton Grange Estate and his and their tenants and servants :
- (j) Before using the said ropeway for the carriage of goods to erect and for ever after maintain across the said Cosford Brook at the point marked "bridge" upon the said plan a convenient and suitable footbridge with a proper gate across the same for the use of the owner or owners for the time being of the Hatton Grange Estate and his and their tenants and servants :
- (k) Not to fence off the line of the said ropeway from the other portions of the Hatton Grange Estate except where it passes through the said plantations as aforesaid and to erect all lines wires and other works in connexion therewith so as to allow free and sufficient passage thereunder for cattle and carts and so that the lands over which the said ropeway passes may be conveniently used for all agricultural and sporting purposes :
- (l) To do all in their power and use every endeavour to prevent trespass upon any portion of the Hatton Grange Estate and to restrain any disturbance of or interference with the game or rabbits thereon and in fish in the said Cosford Brook (excepting in such portion of the Cosford Brook now belonging to the Corporation and which has from time to time to be thoroughly cleansed) by the workmen or servants of the Corporation :
- (m) To pay to the said William Slaney Kenyon-Slaney or other the owner or owners for the time being of the Hatton Grange Estate and his and their tenants reasonable compensation for all loss and damage which he or they may from time to time incur in connexion with the agricultural user of the land by means of the said ropeway whether such loss and damage shall be caused by unavoidable accident or the negligence of the Corporation or their servants the amount of such compensation in case of dispute to be settled by arbitration under the arbitration clause herein-after referred to with this proviso in addition namely that if the amount of such compensation claimed by any such tenant as aforesaid shall not exceed the sum of five pounds and the Corporation shall refuse to pay the same after the said William Slaney Kenyon-Slaney or his head agent or other the owner for the time being of the Hatton Grange Estate or his head agent shall have sent to the Corporation a certificate in writing that such claim is a reasonable one then the Corporation shall pay the whole costs of such tenant in any arbitration necessary to determine the validity or amount of such claim :
- (n) Before using the said ropeway for the carriage of goods to restore the surface of the lands over which the easements of running the same are granted where such lands have been disturbed in the making of such ropeway as nearly as may be to their former conditions and to pay to the tenants thereof reasonable compensation for all loss damage or inconvenience caused to them in the construction thereof the amount of such compensation in case of dispute to be settled by arbitration under the arbitration clause herein-after referred to :

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- (o) To pay all rates taxes and assessments that may hereafter be imposed or become payable in respect of the said ropeway :
- (p) At any time hereafter upon receiving from the said William Slaney Kenyon-Slaney or other the owner for the time being of the Hatton Grange Estate an application in writing to that effect forthwith unless prevented by frost unusual drought or other unavoidable cause or accident to supply him and for ever to continue to supply him with water from the Cosford Pumping Station (without payment) so long as the Corporation shall maintain and employ the said station as part of their water undertaking to an amount not exceeding ten thousand gallons a day and for that purpose at their own charge to lay all necessary mains and pipes to the Mansion House at Hatton Grange and thereafter during the continuance of such maintenance and employment as aforesaid maintain the same and in connexion with such pipes and mains to place one standpipe at the Rookery Farm (by which the said pipes must run) one at the stables at Hatton Grange and six around the Mansion House at such points as may be selected by Colonel Kenyon-Slaney for the purpose of fire prevention the said standpipes to be of the pattern in use at Cosford or of such other suitable pattern as may be recommended by the water engineer for the Corporation The said William Slaney Kenyon-Slaney shall obtain from all District or County Councils affected the necessary powers and consents to enable the Corporation to take up the road or roads in under or across which the Corporation may desire or be compelled to lay any pipes or mains in order to carry out the provisions of this clause The expense of relaying the said roads or of restoring them to their former condition shall as between the said William Slaney Kenyon-Slaney and the Corporation be due from and payable by the Corporation but they shall not be liable to pay any compensation or annual sum by way of easement to any such District or County Council And further no claim for compensation of any nature whatever shall be made against the Corporation by any tenant of the said William Slaney Kenyon-Slaney or by the said William Slaney Kenyon-Slaney or by the Trustees or by any beneficiaries under the settlement herein-before mentioned for any damage to the said Hatton Grange Estate which may be incurred by the laying or erection of any of the said mains pipes or standpipes And in the event of the said William Slaney Kenyon-Slaney or other the owner for the time being of the Hatton Grange Estate requiring a further supply of water from the said Cosford Pumping Station over and above the free supply of ten thousand gallons a day for any purpose whatsoever to supply subject as aforesaid the same to him at a charge not exceeding fourpence per thousand gallons :
- (q) That if at any time during the life of any descendant now living of Her late Majesty Queen Victoria or within the period of twenty-one years after the death of the survivor of such now living descendants the Corporation shall cease to maintain or employ the said Cosford Pumping Station as part of their water undertaking then the Corporation shall free of cost at the request in writing of the owner or owners for the time being of the Hatton Grange Estate reconvey the said pieces of land mentioned in the Schedule hereto to him or them or as he or they shall direct The price to be paid for all the premises to be included in such conveyance as aforesaid shall be a proportionate amount only of the prime cost of any cottages for human habitation that may have been erected under the provisions herein-before contained having regard to their then age and condition and leaving out of consideration and exclusive of the value of the land upon which they are erected and of the value of other buildings and works

then standing thereon the amount of such proportion of the cost in case of dispute to be settled by arbitration under the arbitration clause herein-after referred to. Before executing such conveyance however the Corporation shall be entitled to remove from the said pieces of land all buildings and other works standing thereon other than cottages so erected as aforesaid :

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- (R) That if the Corporation in or after the year one thousand nine hundred and four find it necessary to apply to Parliament for any purpose they shall insert in the Bill promoted for such purpose a clause to be approved by the said William Slaney Kenyon-Slaney and use their best endeavours to procure the same to become law requiring the Corporation to execute the conveyance in the preceding sub-clause (Q) mentioned upon the terms therein stated at any time beyond the limit of time therein expressed when they shall cease to maintain the said pumping station as aforesaid and the said conveyance shall contain a covenant by the Corporation to this effect.

10. The Corporation shall reasonably compensate the present tenant of the said pieces of land for all damage loss or inconvenience which shall be occasioned by severing the land purchased from the other lands of the said William Slaney Kenyon-Slaney such compensation if an amount cannot be agreed upon to be settled by arbitration as herein-after provided.

11. The said ropeway when constituted and all pillars posts lines wires cages and apparatus forming part thereof or used in connexion therewith shall remain at the risk of the Corporation who shall not be entitled to any compensation for any damage done other than wilful thereto by the cattle or carts of the said William Slaney Kenyon-Slaney or the owner for the time being of the Hatton Grange Estate or his or their tenants by any agricultural operation carried on by him or them.

12. The Corporation shall notwithstanding anything contained in the lease herein-after mentioned upon payment to the said William Slaney Kenyon-Slaney of the sum of three hundred pounds together with all rent due under the said lease and upon the due observance and performance of all the covenants therein contained up to the Twenty-fifth day of March One thousand nine hundred and six have the option of surrendering to the said William Slaney Kenyon-Slaney on the said Twenty-fifth day of March One thousand nine hundred and six all the residue then unexpired of a term of fourteen years created by an Indenture dated the First day of December One thousand eight hundred and ninety-four and made between the said William Slaney Kenyon-Slaney of the one part and the Corporation of the other part being the lease of land and premises situate at Ruckley siding in the County of Salop. And the conveyance to the Corporation of the two pieces or parcels of land the subject of this Contract shall contain a covenant by the said William Slaney Kenyon-Slaney to accept such surrender when the precedent conditions herein-before expressed shall have been complied with by the Corporation all proper costs incidental thereto being paid by the Corporation and the conveyance shall also contain a covenant by the said William Slaney Kenyon-Slaney that after the date of such surrender it shall and may be lawful for the Corporation if and when the said ropeway shall be out of repair or not in proper working order to use the said siding free of all charges for any period not exceeding three months at any one time in the same manner and for the same purposes as the same is now used by the Corporation under the said lease but subject to all the terms and conditions in the said lease expressed other than the payment of the rent and royalties therein covenanted to be paid as if such terms and conditions other than as aforesaid were herein set out and repeated seriatim. The Corporation shall during any period for which they may be using the said siding after the said Twenty-fifth day of

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Provisional Order Confirmation (No. 18) Act, 1903.

A.D. 1903. March One thousand nine hundred and six pay to the said William Slaney Kenyon-Slaney a fair proportion calculated upon the quantity of traffic conveyed over the road herein after mentioned of the expense of repairing and maintaining the road leading from the said siding to the main road and the conveyance to the Corporation shall contain a covenant by them to that effect.

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13. The costs and expenses as well as of the said William Slaney Kenyon-Slaney and the said Trustees as of the Corporation incurred and to be incurred in or about the preparation and execution of this Contract and the negotiations preparatory thereto and in and about the preparation and execution of the conveyance and the counterpart thereof and of all other documents relating to the assurance of the said premises and in or about the preparation of the abstract and the deducing and verifying of the title of the said William Slaney Kenyon-Slaney and the said Trustees and all other costs and expenses (if any) which in the absence of any special agreement would be payable by the Corporation under the Lands Clauses Consolidation Act 1845 if the purchase herein agreed to be made had been a compulsory purchase made by the Corporation under that Act shall be borne and paid by the Corporation. Provided that the whole of such costs included in this clause do not exceed the sum of fifty pounds.

14. If the said parties hereto shall not agree as to the form of the Conveyance to be executed for carrying this Agreement into effect the same shall be settled by one of the Conveyancing Counsel to His Majesty's High Court of Justice to be nominated by the President for the time being of the Incorporated Law Society and as settled by such Counsel such Conveyance and the counterpart thereof shall be executed by all the necessary parties thereto.

15. If after the execution of the said Conveyance any difference or dispute shall arise between the said parties hereto or their respective representatives successors or assigns in regard to the construction of anything in such Conveyance contained or as to any payment act or thing to be done in pursuance thereof or in regard to the rights and liabilities of any party thereto or the respective successors or assigns of any such party thereunder such difference or dispute shall be forthwith referred to two arbitrators one to be appointed by each party in difference or dispute according and subject to the provisions of the Arbitration Act 1889 or any for the time being subsisting modification or re-enactment thereof and the said Conveyance shall contain a covenant and agreement to this effect.

16. The provisions of this Contract are subject to necessary confirmation by Parliament in the next ensuing session of 1903 or to Parliamentary powers where necessary being conferred upon the Corporation to enable them to give effect to the said provisions and the Corporation hereby covenant and agree with the said William Slaney Kenyon-Slaney and the Trustees that the Corporation will use their best endeavours to obtain before the Twenty-ninth day of September One thousand nine hundred and three such necessary confirmation by Parliament or such necessary Parliamentary powers to enable them to carry out the terms of this Agreement.

17. Any material modification of this Agreement or of the terms herein contained inserted by the Local Government Board or by Parliament in any Provisional Order or Act as aforesaid shall not wholly annul or make void this Agreement unless the said William Slaney Kenyon-Slaney or the Corporation shall within one month after such Act shall have obtained the Royal Assent give notice in writing in that behalf to the other of them but this Agreement shall if no such notice shall be given as aforesaid be read and construed as if the same had been executed with such modifications herein inserted and the purchase concessions and terms herein agreed upon shall be completed made and carried out upon that basis.

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Provisional Order Confirmation (No. 18) Act, 1903.

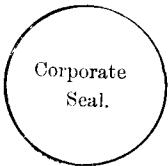
In witness whereof the said parties to these presents of the first two parts inclusive have hereunto set their hands and seals and the Corporation have caused their Common Seal to be hereunto affixed the day and year first herein-before written.

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Wolverhampton Order

The SCHEDULE herein-before referred to.

All those two pieces or parcels of freehold land situate within the Parishes of Shifnal and Tong in the County of Salop as the same are for the better description thereof delineated on the plan hereto being thereon coloured pink and marked plot 1 and plot 2 which said pieces or parcels of land contain 5·9 acres in plot 1 and 2·1 acres in plot 2.

The Common Corporate Seal of
the Corporation was hereunto
affixed in the presence of
GEORGE R. THORNE
Mayor.
HORATIO BREVITT
Town Clerk.



Signed by the said William Slaney
Kenyon-Slaney in the presence of
W. C. CLEMENT PEELE
Solicitor Shrewsbury.

W. S. KENYON-SLANEY.

Signed by the said Robert Lloyd
Kenyon in the presence of
W. C. CLEMENT PEELE.

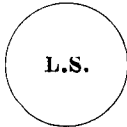
R. L. KENYON.

Signed by the said Francis Gerald
Kenyon Slaney in the presence
of
S. A. HEBDEN
Bank Alnwick
Bank Manager.

FRANCIS G. KENYON SLANEY.

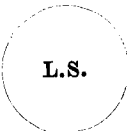
Re-signed Sealed and Delivered by
the said William Slaney Kenyon-
Slaney in the presence of
FREDERICK STEVENS
Valet
Hatton Grange
Shifnal.

W. S. KENYON-SLANEY.



Re-signed Sealed and Delivered by
the said Robert Lloyd Kenyon
in the presence of
THOS. GINNING
Pradoe Oswestry
Butler.

R. L. KENYON.



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Provisional Order Confirmation (No. 18) Act, 1903.

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Re-signed Sealed and Delivered by }
the said Francis Gerald Kenyon }
Slaney in the presence of }
HENRY DAWSON }
Denwick House }
Alnwick. }

FRANCIS G. KENYON SLANEY.

L.S.

Given under the Seal of Office of the Local Government Board this
Twenty-sixth day of May One thousand nine hundred and
three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

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